

MEMORANDUM TO THE FILE

Subj: USE OF OTHER THAN FULL AND OPEN COMPETITION FOR AN ACQUISITION UNDER THE SIMPLIFIED ACQUISITION THRESHOLD

IDENTIFICATION OF SOURCE:

Vendor Name: Santa Barbara Infrared INC. (SBIR)

Vendor City/State: 30 South Calle Cesar Chavez
Suite D
Santa Barbara, CA 93103

Cage: 0B0B2

Total Dollar Value: 

1. FAR 13.106-1(b)(1)(i) states for purchases not exceeding the simplified acquisition threshold, Contracting Officers may solicit from one source if the Contracting Officer determines that the circumstances of the contract action deem only one source reasonably available (e.g., urgency, exclusive licensing agreements, brand-name or industrial mobilization).
2. As required by FAR 13.106-3(b)(3)(i), this memorandum explains the absence of competition for this acquisition, as only one source will be solicited for this requirement (or for a portion of the requirement) and the requirement is not expected to exceed the simplified acquisition threshold.

II. DESCRIPTION OF ITEM OR SERVICE:

Provide a description of the item or service required, to include its intended use, the name of the required source or brand name, and the required delivery date/period of performance.

This uniform light scattering Integrating Sphere and Interference Box are being used for optical bench testing of individual SPEIR MWIR and visible spectrum cameras. They can be used for acceptance testing of individual LRUs either provided as spares or as repaired assets. In addition, SBIR integrating spheres have the cleanest and most effective integration with the current SBIR bench and other SBIR components. Other brands have been documented to pose integration issues or glitches during test execution causing delays in getting LRUs back into the fleet, which impacts schedule and cost. In order to remain wartime ready, this uniform light scattering SBIR integrating sphere and interface box are essential components to replicate consistent, reliable and repeatable testing, ensuring products that go back out will perform to the best of their ability. In conclusion, if LRUs returned back to the fleet are not fully functioning, warfighters will not be able to successfully perform their duties and could even put them at some risk. Maintaining the status quo would greatly hinder warfighter EO capabilities without this addition. Lastly, it also adds cost once again since the LRU will need to be sent back for further testing.

III. THE DETERMINATION FOR USE OF OTHER THAN FULL AND OPEN COMPETITION IS BASED ON THE FOLLOWING (select applicable area below to open specific form)

- ☐ A. ONLY ONE RESPONSIBLE SOURCE
- ☒ B. BRAND NAME
- ☐ C. UNUSUAL AND COMPELLING URGENCY

A. ONLY ONE RESPONSIBLE SOURCE (select all that apply):

1. RESTRICTIVE RIGHTS. The source has established proprietary rights, limited rights in data, patent rights, copyrights or secret processes in the item or service required.

2. EXCLUSIVE LICENSING AGREEMENTS. The item or service is only available from the Original Equipment Manufacturer (OEM), or there is only one authorized distributor or technical representative for the OEM.

3. OTHER REASONS. Other reason not identified above. Provide details on mission impact if requirement is not solicited from only one source.

B. BRAND NAME. Item required must be a brand name product, or feature of a product, particular to one manufacturer.

Currently the SPIER optical bench utilizes SBIR equipment that includes a twelve position target wheel. This target wheel has proprietary coding that will only allow communication to other SBIR equipment. If another OEM's product were introduced it would require extensive testing and reconfiguration of the SPIER MIWIR and visible spectrum cameras. This extensive testing and reconfiguration would cost the Government in excess of [REDACTED] and delay schedules in for several months/years. These costs would not be recouped via competition.

C. UNUSUAL AND COMPELLING URGENCY. The supplies or services are of such unusual and compelling urgency that the Government would be seriously injured unless the agency is permitted to limit the number of sources from which it solicits, bids, or proposals. Urgent requirements are supplies or services that will result in a work stoppage, or are mission critical and the routine processing time would result in injury to the Government. The determination that the procurement for the above item/service is an urgent and compelling requirement is based on the following:

1. Date on which the requirement was first identified:
2. Required delivery date/period of performance
3. Explanation of why delivery/commencement of services by the date mentioned above is required:
4. If appropriate, include any additional pertinent information.

IV. CERTIFICATION/APPROVALS:

A. Technical / Requirements Certifications: I certify that the facts and representation under my cognizance which are included in this justification are complete and accurate to the best of my knowledge and belief.



B. Certification / Approval

Upon the basis of the above statements and information justification, I hereby approve, as the Contracting Officer, the solicitation of the proposed procurement(s) using other than full and open competition.

